

FIT LEISURE AGREEMENT

365 TRAVEL AND INVESTMENT COMPANY LIMITED

9th Floor - Ladeco Building, 266 Doi Can Str., Lieu Giai Ward, Ba Dinh
District, Ha Noi, Vietnam
Telephone: (84 24) 3835 4899

LA VERANDA RESORT PHU QUOC-MGALLERY

Tran Hung Dao Street, Duong Dong Town
Phu Quoc Island, Kien Giang Province, Vietnam
Reservation email: contact@laverandaresorts.com

Contact person:	Ms. Hoang Thi Mai Huong
Position:	Contracting Director
Email:	holy.hoang@365travel.asia

Contact person:	Ms. Thao Nguyen (Danielle)
Position:	Director of Sales
Email:	dosm@laverandaresorts.com

Validity: 01-Nov-23 Until 31-Oct-24
Market: Worldwide market (Excluding China, Hongkong, Macau, Taiwan)
Currency: VND
Rate basis: per room per night

Rate basis:	Validity		Rate			Allotment	
	From	Until	Single/Double occupancy	Triple Supplement (Extrabe & breakfast)		Meal Plan	No. of Room
				Child	Adult		
Deluxe Garden	01-Nov-23	22-Dec-23	5,872,000	951,000	1,183,000	BB	
	23-Dec-23	07-Jan-24	7,461,000	951,000	1,183,000	BB	
	08-Jan-24	30-Apr-24	5,872,000	951,000	1,183,000	BB	
	01-May-24	31-Oct-24	4,176,000	1,056,000	1,296,000	BB	
Premier Garden	01-Nov-23	22-Dec-23	6,475,000	951,000	1,183,000	BB	
	23-Dec-23	07-Jan-24	8,064,000	951,000	1,183,000	BB	
	08-Jan-24	30-Apr-24	6,475,000	951,000	1,183,000	BB	
	01-May-24	31-Oct-24	4,848,000	1,056,000	1,296,000	BB	
Premier Ocean	01-Nov-23	22-Dec-23	7,279,000	951,000	1,183,000	BB	
	23-Dec-23	07-Jan-24	8,868,000	951,000	1,183,000	BB	
	08-Jan-24	30-Apr-24	7,279,000	951,000	1,183,000	BB	
	01-May-24	31-Oct-24	5,568,000	1,056,000	1,296,000	BB	
Classic Garden Villa	01-Nov-23	22-Dec-23	7,882,000	951,000	1,183,000	BB	
	23-Dec-23	07-Jan-24	9,471,000	951,000	1,183,000	BB	
	08-Jan-24	30-Apr-24	7,882,000	951,000	1,183,000	BB	
	01-May-24	31-Oct-24	6,672,000	1,056,000	1,296,000	BB	
Memorable Premier Ocean	01-Nov-23	22-Dec-23	8,854,000	951,000	1,183,000	BB	
	23-Dec-23	07-Jan-24	11,067,000	951,000	1,183,000	BB	
	08-Jan-24	30-Apr-24	8,854,000	951,000	1,183,000	BB	
	01-May-24	31-Oct-24	7,224,000	1,056,000	1,296,000	BB	
Junior Ocean Suite	01-Nov-23	22-Dec-23	9,856,000	951,000	1,183,000	BB	
	23-Dec-23	07-Jan-24	11,836,000	951,000	1,183,000	BB	
	08-Jan-24	30-Apr-24	9,856,000	951,000	1,183,000	BB	
	01-May-24	31-Oct-24	8,784,000	1,056,000	1,296,000	BB	
La Veranda Ocean Villa	01-Nov-23	22-Dec-23	10,897,000	951,000	1,183,000	BB	
	23-Dec-23	07-Jan-24	12,485,000	951,000	1,183,000	BB	

	08-Jan-24	30-Apr-24	10,897,000	951,000	1,183,000	BB		
	01-May-24	31-Oct-24	9,768,000	1,056,000	1,296,000	BB		

Meal Rate	Validity		Breakfast		Lunch		Dinner	
	From	Until	Buffet		Set Menu		Set Menu	
			Adult	Child	Adult	Child	Adult	Child
	01-Nov-23	31-Oct-24	Included	255,000	626,000	325,000	1,160,000	580,000
Compulsory Events	24-Dec-23		Christmas Eve				4,292,000	2,158,000
	31-Dec-23		New Year's Eve				4,756,000	2,390,000
Promotion	Validity		Details					
Early Bird Offer	01-Nov-23	31-Oct-24	- 10% Early bird discount on contracted rate of accommodation & extra bed, excepting meals - Applied on reservation for stay in: • high season (01-Nov-23 to 22-Dec-23 & 08-Jan-24 to 30-Apr-24): 60 days in advance • low season (01-May-24 to 31-Oct-24): 30 days in advance - Not applicable on peak season 23-Dec-23 to 07-Jan-24: Not combinable with any other promotion					
Stay / Pay (Bonus night)	01-Nov-23	31-Oct-24	- Stay 7 Pay 6 and multiple of it (7=6, 14=12...) - Applied on accommodation including extra bed, excepting meals - Applied for bookings with arrival from 01-Nov-23 onward and the last departure is on 31-Oct-24, excepting peak season 23-Dec-23 to 07-Jan-24 - Not combinable with any other promotion					

TERMS & CONDITIONS

- Rates are applicable for individual travellers only (FIT). Group rate (bookings with 7 rooms) and above or other requirements are available upon request.
- Rates are valid for bundled, packaged or brochured leisure business only. "Package is defined as accommodation and breakfast coupled with at least one additional service whose value represents more than 30% of the rate.
- Rates are not to be offered, knowingly or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes to distribution or retailing via the Internet. The hotel reserves the right to remove/cancel the Agreement if rates are being contracted via inappropriate channels or direct to consumers.
- Allotments are on the basis that the hotel is included in a wholesales program and subject to quarterly reviewed.
- All rates are inclusive of service charge and government tax, and non-commissionable.
- The Agent confirms and agrees that this Agreement is confidential and may not be transferred from one company to another without specific authorization of the Hotel.
- No check out on December 24 and December 31.

ROOM OCCUPANCY POLICY

- Maximum occupancy per room for adult is three (3) people.
- Maximum occupancy per room for family is two (2) adults and one (1) child under 12 years old sharing bed.

CHECK-IN / CHECK-OUT TIME

- Check-in time (all periods) is 2 pm. For a guaranteed early check in the room will be blocked the night before and a charge equivalent to 100% of 1 night at the contract rate will apply. Breakfast is included.
- Check-out time is 12 noon. For a guaranteed late check out until 6 pm a charge equivalent to 50% of 1 night at the contract rate will apply. For guaranteed late checkout past 6 pm a charge equivalent to 100% of 1 night at the contract rate will apply. Subject to room availability.

BONUS OFFER, VALUE ADDS AND POLICIES

Honeymoon Offer

- Validity: year-round
- Free upgrade to higher category (subject to availability upon arrival)
- Special set up in room

Value Adds

- Round-trip airport transfers on sharing basis
- VIP check-in at Le Bar with welcome drink, cool towels and canapé
- Welcome fruits in room on arrival date
- La Veranda wine reception twice a week, available from Nov to Apr and subject to change without prior notice
- Madame Catherine afternoon high-tea twice a week, available from Nov to Apr and subject to change without prior notice
- Sorbet and cool towels served twice a day around the swimming pool and on the beach (subject to change without prior notice)
- Free usage of Wi-Fi and activities for guests such as bodyboard, bicycle, ping-pong,...

Value Adds for Long-staying guests (for minimum stay of 6 consecutive nights)

- 10% discount on spa treatment
- 10% discount on F&B (except minibar and room service)
- 30% discount on laundry if the service is less than 15 pieces; or 50% discount if the service is from 15 pieces and above
- Free upgrade to higher category (subject to availability upon arrival)

Policies

Children Policy

- Accommodation is free of charge for one child under 12 years, sharing parent's room and utilizing existing bedding. Extra charge for child breakfast or extra bed (if require) is applicable
- Meal plan (breakfast, lunch, dinner) and compulsory events: 0-4 years: free of charge / >4 – 11 years: child prices as above / 12 years and above: charge as adult.

Cancellation Policy

- High season (01-Nov-23 to 22-Dec-23 & 08-Jan-24 to 30-Apr-24): 30 to 21 days prior to arrival, 1st night charge; 20 days till the arrival date, full charge;
- Peak season (23-Dec-23 to 07-Jan-24): 45 to 30 days prior to arrival, 1st night charge; 29 days till the arrival date, full charge;
- Low season (01-May-24 to 31-Oct-24): 14 to 8 days prior to arrival, 1st night charge; 7 days till the arrival date, full charge;

No show Policy

- No show or shortening stay will be applied full charge for the whole length of stay

PAYMENT & CREDIT TERMS

Full payment is required for all services provided unless credit and billing approval has been established directly with Hotel.

For companies with approved credit, the Hotel will send a statement of account, and settled by the agent signed in this contract in full, without producing consent from guests, received within thirty (30) days after tender of invoice. The Hotel reserves the right to withdraw credit facilities provide, subject to Agent's prevailing credit standing with the Hotel.

- High season (01-Nov-23 to 22-Dec-23 & 08-Jan-24 to 30-Apr-24): 35 days prior to arrival
- Low season (01-May-24 to 31-Oct-24): 20 days prior to arrival
- Peak season (23-Dec-23 to 07-Jan-24): 50 days prior to arrival

BANK ACCOUNT DETAILS

Bank Name: Vietcombank – KienGiang
Account Name: Cong Ty TNHH Lien Doanh Khu Du Lich Veranda
Bank Branch: KienGiang Branch
Bank address: No 02, Mac Cuu Str, Rach Gia City, Kien Giang Provincial
Account Number: USD 0091370105841 – VND 0091000105828
Swift code: BFTVNVX

OR

Account No: VND 0091000574875 _ USD 0091370574876
Account Name: Cong Ty Co Phan Du Lịch & Phat Trien Ba Keo
Bank Name: Vietcombank Kien Giang
Bank address: 1A Hung Vuong, TT. Duong Dong, Huyen Phu Quoc, Tinh Kien Giang
Swift code: BFTVNVV

BROCHURE COPY & PHOTO APPROVAL

All brochure copy and photographs produced by Agent depicting the Hotel must be approved by Hotel in advance. When the Hotel is included in the agents' brochure/website, a copy check must be signed off by the Hotel by providing a copy to the Hotel prior to printing. Otherwise all responsibility for incorrect information and liability is that of the Tour Operator. A copy of the brochure/web link is required to send to the Hotel.

RIGHT TO TERMINATE

If either the Tour Operator or the Hotel fails or neglects to perform or observe the terms required under this Agreement and such failure continues for a period of 7 days after service of a written certified notice from the other party ("the non-defaulting party") calling upon the defaulting party to remedy the failure, then the non-defaulting party can request to terminate this Agreement without prejudice to any rights of the parties arising prior to such termination.

Force Majeure Event means an event beyond the control of one Party, which could not reasonably have been foreseen and which effects cannot be avoided by appropriate measures, preventing this Party from performing its obligations performed under this Agreement.

Force Majeure Event between the Hotel and the Tour Operator

Neither Party shall be liable in case of a failure to perform or a delay in the performance of its obligations hereunder due to a Force Majeure Event which was unforeseeable at the execution date of this Agreement.

The Party affected by the Force Majeure Event shall notify the other Party as soon as reasonably possible of the occurrence of the Force Majeure Event. Such notice shall detail how the Force Majeure Event prevents the performance of its obligations hereunder.

As from the occurrence of said notification, the Parties' respective obligations shall be suspended during the time of the Force Majeure Event, and neither Party shall incur any liability in this regard. However, in any event, the affected Party shall make its best efforts to mitigate the effects of such Force Majeure Event.

If the Force Majeure Event lasts more than thirty (30) days, then the Parties expressly agree to discuss in good faith the impact of the Force Majeure Event on this Agreement and on the Parties' respective obligations hereunder and shall negotiate, in good faith, any amendment, whether temporary or definitive, to be made to this Agreement.

Should the Parties fail to find a mutually acceptable solution within thirty (30) days, then either Party shall be entitled to terminate this Agreement as of right, by written notice to the other Party, without any further formality, without incurring any liability and without any indemnity being due. Termination shall be effective as of the date of receipt of the aforementioned written notice.

In any event, each Party shall bear all its own expenses resulting from the occurrence of the Force Majeure Event.

Force Majeure Event between the Hotel and a Guest

The Hotel or a Guest (i.e. the end customer who books Hotel accommodation services through the Tour Operator distribution channels on an individual basis for leisure purposes in accordance with this Agreement, provided that the end customer is a natural person) shall not be liable in case of a failure to perform or a delay in the performance of its obligations hereunder due to a Force Majeure Event which was unforeseeable at the time of booking.

In any event, for any booking, as the Tour Operator acts as an intermediary between the Hotel and the Guest for the only purpose of facilitating bookings, the Tour Operator cannot and is not authorized to grant more rights to the Guest than granted by the Hotel and as such, the Tour Operator is not authorized to and shall not determine whether a Force Majeure Event has occurred in relation to a booking on behalf of the Hotel and/or on behalf of a Guest, such determination being left to the Hotel's sole discretion. In this regard, should the Hotel and/or a Guest invoke a Force Majeure Event in relation to a booking, the Tour Operator shall only convey any exchanges of information related thereto to the Hotel and/or the Guest.

Any breach of the foregoing by the Tour Operator shall be at the Tour Operator's entire responsibility and the Agent shall indemnify the Hotel of any and all costs incurred in this regard.

If the Hotel is unable to honour a Guest's reservation due to *Force Majeure Event*, or an exceptional event, the Hotel reserves the right to relocate and transport the Guest.

CONFIDENTIALITY

The Tour Operator confirms and agrees that this Agreement is confidential. The Tour Operator shall not in any circumstance divulge or permit to be divulged the contents of this agreement. Contract may not be transferred from one company to another without specific authorization of the Hotel.

ACCEPTANCE

Upon acceptance, please return a signed copy to us within 30 days of the issue date of this contract; if not, the contract is considered void. All rates are subject to allotment and/or availability.

Tour Operator may not assign or delegate its rights or duties under this Agreement without Hotel's prior approval. This Agreement is governed by and is to be constructed in accordance with the laws of ... (country of location of the Hotel). The parties irrevocably agree that the commercial court in the jurisdiction the Hotel is located will have exclusive jurisdiction to settle any dispute which may arise out of or in connection with this contract. If any provision of this Agreement is held to be invalid or unenforceable that provision will be eliminated or limited to the minimum extent possible, and the remainder of the Agreement will have full force and effect. If either party agrees to waive its right to enforce any term of this Agreement, it does not waive its right to enforce any other terms of this Agreement. This Agreement constitutes the entire agreement between the parties, supersedes all other written and oral agreements between the parties concerning its subject matter, and may not be amended except by a writing signed by Hotel and Tour Operator.



ACCEPTED AND AGREED TO:

365 TRAVEL AND INVESTMENT COMPANY LIMITED

FOR LA VERANDA RESORT PHU QUOC – MGALLERY

Signature_____

Date: 12Apr.2023

Name: Hoang Thi Mai Huong

Title: Contracting Director

Signature_____

Date_____

Name_____

Title_____